

1 ENGROSSED HOUSE
2 BILL NO. 3129

By: West (Kevin) of the House

3 and

4 Sacchieri of the Senate
5
6

7 An Act relating to higher education; amending 70 O.S.
8 2021, Section 2120, as amended by Section 3, Chapter
9 18, O.S.L. 2022 (70 O.S. Supp. 2025, Section 2120),
10 which relates to protected expressive activities on
11 campus; permitting public institutions of higher
12 education to charge security fees to students and
13 student organization as part of an application for
14 expressive activities; prohibiting public
15 institutions of higher education from charging
16 security fees based on the content of the student's
17 or student organization's expression, the content of
18 the student's or student organization's invited
19 guest's expression, or the anticipated reaction to
20 the student's, student organization's, or invited
21 guest's expression; requiring any required security
22 fee be based on content- and viewpoint-neutral
23 criteria; directing public institutions of higher
24 education to publish criteria on its website;
requiring public institutions of higher education to
provide notice to a student or student organization
prior to the expressive activity and explanation of
the security fee to be charged; providing an
effective date; and declaring an emergency.

21 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

22 SECTION 1. AMENDATORY 70 O.S. 2021, Section 2120, as
23 amended by Section 3, Chapter 18, O.S.L. 2022 (70 O.S. Supp. 2025,
24 Section 2120), is amended to read as follows:

1 Section 2120. A. As used in this act:

2 1. "Campus community" means students, administrators, faculty,
3 and staff at the public institution of higher education and their
4 invited guests;

5 2. "Harassment" means only that expression that is unwelcome,
6 so severe, pervasive, and subjectively and objectively offensive
7 that a student is effectively denied equal access to educational
8 opportunities or benefits provided by the public institution of
9 higher education;

10 3. "Materially and substantially disrupts" means when a person,
11 with the intent to or with knowledge of doing so, significantly
12 hinders another person's or group's expressive activity, prevents
13 the communication of the message, or prevents the transaction of the
14 business of a lawful meeting, gathering, or procession by:

15 a. engaging in fighting, violent, or other unlawful
16 behavior, or

17 b. physically blocking or using threats of violence to
18 prevent any person from attending, listening to,
19 viewing, or otherwise participating in an expressive
20 activity. Conduct that "materially disrupts" shall
21 not include conduct that is protected under the First
22 Amendment to the United States Constitution or Section
23 22 of Article ~~2~~ II of the Oklahoma Constitution. Such
24 protected conduct includes, but is not limited to,

1 lawful protests in the outdoor areas of campus
2 generally accessible to the members of the public,
3 except during times when those areas have been
4 reserved in advance for other events, or minor, brief,
5 or fleeting nonviolent disruptions of events that are
6 isolated and short in duration;

7 4. "Outdoor areas of campus" means the generally accessible
8 outside areas of campus where members of the campus community are
9 commonly allowed, such as grassy areas, walkways, or other similar
10 common areas and does not include outdoor areas where access is
11 restricted from a majority of the campus community;

12 5. "Public institution of higher education" means any
13 institution within The Oklahoma State System of Higher Education or
14 technology center schools overseen by the State Board of Career and
15 Technology Education; and

16 6. "Student organization" means an officially recognized group
17 at a public institution of higher education, or a group seeking
18 official recognition, comprised of admitted students that receive or
19 are seeking to receive benefits through the public institution of
20 higher education.

21 B. Expressive activities protected under the provisions of this
22 section include, but are not limited to, any lawful verbal, written,
23 audio-visual, or electronic means by which individuals may
24 communicate ideas to one another, including all forms of peaceful

1 assembly, protests, speeches and guest speakers, distribution of
2 literature, carrying signs, and circulating petitions.

3 C. 1. The outdoor areas of campuses of public institutions of
4 higher education in this state shall be deemed public forums for the
5 campus community, and public institutions of higher education shall
6 not create "free speech zones" or other designated areas of campus
7 outside of which expressive activities are prohibited. Public
8 institutions of higher education may maintain and enforce reasonable
9 time, place, and manner restrictions narrowly tailored in service of
10 a significant institutional interest only when such restrictions
11 employ clear, published, content- and viewpoint-neutral criteria,
12 and provide for ample alternative means of expression. Any such
13 restrictions shall allow for members of the campus community to
14 spontaneously and contemporaneously assemble and distribute
15 literature.

16 2. Nothing in this subsection shall be interpreted as limiting
17 the right of student expression elsewhere on campus.

18 D. 1. Any person who wishes to engage in noncommercial
19 expressive activity on campus shall be permitted to do so freely, as
20 long as the person's conduct is not unlawful and does not materially
21 and substantially disrupt the functioning of the public institutions
22 of higher education, subject only to the requirements of subsection
23 C of this section.

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1 2. Nothing in this subsection shall prohibit public
2 institutions of higher education from maintaining and enforcing
3 reasonable time, place, and manner restrictions that are narrowly
4 tailored to serve a significant institutional interest only when
5 such restrictions employ clear, published, content- and viewpoint-
6 neutral criteria. Any such restrictions shall allow for members of
7 the campus community to spontaneously and contemporaneously
8 assemble, speak, and distribute literature.

9 3. Nothing in this subsection shall be interpreted as
10 preventing public institutions of higher education from prohibiting,
11 limiting, or restricting expression that the First Amendment does
12 not protect or prohibiting harassment as defined by this section.

13 4. Nothing in this section shall enable individuals to engage
14 in conduct that intentionally, materially, and substantially
15 disrupts another person's expressive activity if that activity is
16 occurring in a campus space reserved for that activity under the
17 exclusive use or control of a particular group.

18 E. 1. Public institutions of higher education may charge
19 security fees to a student or student organization as part of an
20 application for expressive activities that require a permit. Public
21 institutions of higher education shall not charge security fees to a
22 student or student organization based on the content of the
23 student's or student organization's expression, the content of the
24 student's or student organization's invited guest's expression, or

1 the anticipated reaction to the student's, student organization's,
2 or invited guest's expression.

3 2. Any required security fee shall be based solely on content-
4 and viewpoint-neutral criteria including, but not limited to, the
5 time or location of the event, the anticipated size of the event
6 audience, and whether alcohol will be served. Any public
7 institution of higher education who charges security fees shall make
8 public in its handbooks, on its website, and through its orientation
9 programs for students the criteria used for assessing security fee
10 charges.

11 3. In every instance when a public institution of higher
12 education charges a security fee to a student or student
13 organization for their expressive activity, the public institution
14 of higher education shall notify the student or student organization
15 prior to the expressive activity. The notice shall explain the
16 security fee charged, including:

17 a. identifying the specific basis for the fee in the
18 public institution of higher education's published
19 criteria; and

20 b. explaining why the identified criteria are implicated
21 by the student or student organization's event.

22 F. Public institutions of higher education shall make public in
23 their handbooks, on their websites, and through their orientation
24 programs for students the policies, regulations, and expectations of

1 students regarding free expression on campus consistent with this
2 section.

3 ~~F.~~ G. Public institutions of higher education shall develop
4 materials, programs, and procedures to ensure that those persons who
5 have responsibility for discipline or education of students,
6 including, but not limited to, administrators, campus police
7 officers, residence life officials, and professors, understand the
8 policies, regulations, and duties of public institutions of higher
9 education regarding free expression on campus consistent with this
10 section.

11 ~~G.~~ H. 1. Each public institution of higher education shall
12 publicly post on its website, as well as submit to the Governor, the
13 Legislature, and the Chancellor of The Oklahoma State System of
14 Higher Education annually by December 31, a report that details the
15 course of action implemented to be in compliance with the
16 requirements of this section. A report shall also be given in the
17 instance of any changes or updates to the chosen course of action.
18 The information required in the report shall be:

- 19 a. accessible from the institution's website home page by
20 use of not more than three links,
- 21 b. searchable by key words and phrases, and
- 22 c. accessible to the public without requiring
23 registration or use of a user name, password or
24 another user identification.

1 2. The report shall include:

- 2 a. a description of any barriers to or incidents of
3 disruption of free expression occurring on campus,
4 including but not limited to attempts to block or
5 prohibit speakers and investigations into students or
6 student organizations for their speech. The
7 description shall include the nature of each barrier
8 or incident, as well as what disciplinary action, if
9 any, was taken against members of the campus community
10 determined to be responsible for those specific
11 barriers or incidents involving students without
12 revealing those students' personally identifiable
13 information, and
14 b. any other information each public institution of
15 higher education deems valuable for the public to
16 evaluate whether free expression rights for all
17 members of the campus community have been equally
18 protected and enforced consistent with this act.

19 3. If a public institution of higher education is sued for an
20 alleged violation of First Amendment rights, a supplementary report
21 with a copy of the complaint, or any amended complaint, shall be
22 submitted to the Governor and the Legislature within thirty (30)
23 days.

1 ~~H.~~ I. Any person or student organization aggrieved by a
2 violation of this section may bring an action against the public
3 institution of higher education and its employees acting in their
4 official capacities responsible for the violation and seek
5 appropriate relief, including, but not limited to, injunctive
6 relief, monetary damages, reasonable ~~attorneys'~~ attorney fees, and
7 court costs. Any person or student organization aggrieved by a
8 violation of this section may assert such violation as a defense or
9 counter claim in any disciplinary action or in any civil or
10 administrative proceedings brought against such student or student
11 organization. Nothing in this subsection shall be interpreted to
12 limit any other remedies available to any person or student
13 organization.

14 ~~I.~~ J. A person shall be required to bring suit for violation of
15 this section no later than one year after the day the cause of
16 action occurs. For purposes of calculating the one-year limitation
17 period, each day that the violation persists and each day that a
18 policy in violation of this section remains in effect shall
19 constitute a new day that the cause of action has occurred.

20 ~~J.~~ K. If any provision of this section or any application of
21 such provision to any person or circumstance is held to be
22 unconstitutional, the remainder of the section and the application
23 of the provision to any other person or circumstance shall not be
24 affected.

SECTION 2. This act shall become effective July 1, 2026.

SECTION 3. It being immediately necessary for the preservation of the public peace, health or safety, an emergency is hereby declared to exist, by reason whereof this act shall take effect and be in full force from and after its passage and approval.

Passed the House of Representatives the 24th day of March, 2026.

Presiding Officer of the House
of Representatives

Passed the Senate the ____ day of _____, 2026.

Presiding Officer of the Senate